

SENATE BILL

NO.

Introduced by Senator Arreguín

September 28, 2025

An act that amends Chapter 2 Containers and Packaging of Public Resources Code, enforcing producers to print proper disposal directions on all “rigid plastic bottles” and “rigid plastic containers” of 16 ounces more or less than 5 gallons.

LEGISLATIVE COUSEL’S DIGEST

SB-14, as introduced, Senator Arreguín, Knowledgeable Plastic Consumer Bill

In regards to the current Public Resources Code, Division 12.7 Plastic Waste, Chapter 2. Containers and Packaging, enforces the labeling of a code which indicates the resin used to produce “rigid plastic bottles” and “rigid plastic containers”. This indication is then used by The Division of Recycling in the Department of Resources Recycling and Recovery when dividing produced plastics.

The amendment will issue manufactures to apply an additional informational label to all “rigid plastic bottles” and “rigid plastic containers” 16 ounces more or less than 5 gallons. In order to inform consumers of proper disposal, along with advising them of their local recycling center within their community.

VOTE: majority APPROPRIATIONS: no FISCAL COMMITTEE: no LOCAL PROGRAM: no

THE PEOPLE OF THE STATE OF CALIFORNIA DO ENACT AS FOLLOWS:

Section 1.**PUBLIC RESOURCES CODE - PRC**

DIVISION 12.7. PLASTIC WASTE [18000 - 18017] (*Division 12.7 added by Stats. 1988, Ch. 838, Sec. 1.)*

CHAPTER 2. Containers and Packaging [18010 - 18017] (*Chapter 2 added by Stats. 1988, Ch. 838, Sec. 1.)*

18010.

(*Added by Stats. 1988, Ch. 838, Sec. 1.*) “Rigid plastic container” means any formed or molded article composed predominantly of plastic resin and having a relatively inflexible finite shape or form intended primarily as a single service container with a capacity of eight ounces or more and less than five gallons.

18011.

“Rigid plastic bottle” means any rigid plastic container with a neck that is smaller than the container body with a capacity of 16 ounces or more and less than five gallons.

(Added by Stats. 1988, Ch. 838, Sec. 1.)

18012.

“Label” means a code label described in Section 18015 molded into the bottom of the plastic product.

(Added by Stats. 1988, Ch. 838, Sec. 1.)

18013.

“Polyethylene terephthalate” means a plastic derived from a reaction between terephthalic acid or dimethyl terephthalate and monoethylene glycol as to which both of the following conditions are satisfied:

(a) The terephthalic acid or dimethyl terephthalate and monoethylene glycol reacted constitutes at least 90 percent of the mass of the monomer reacted to form the polymer.

(b) The plastic exhibits a melting peak temperature that is between 225 degrees Celsius and 255 degrees Celsius, as determined during the second thermal scan using procedure 10.1 as set forth in ASTM International (ASTM) D3418 with a heating rate of a sample at 10 degrees Celsius per minute.

(c) This section becomes operative on October 1, 2018.

(Added by Stats. 2017, Ch. 823, Sec. 1. (AB 906) Effective January 1, 2018. Section operative October 1, 2018, by its own provisions.)

18015.

(a) All rigid plastic bottles and rigid plastic containers sold in the state shall be labeled with a code that indicates the resin used to produce the rigid plastic bottle or rigid plastic container. Rigid plastic bottles or rigid plastic containers with labels and basecaps of a different material shall be coded by their basic material. The code shall consist of a number placed inside a triangle, and letters placed below the triangle. The numbers and letters used shall be as follows:

1 = PETE (polyethylene terephthalate)

2 = HDPE (high density polyethylene)

3 = V (vinyl)

4 = LDPE (low density polyethylene)

5 = PP (polypropylene)

6 = PS (polystyrene)

7 = OTHER (includes multilayer)

(b) A “7” shall appear below the resin abbreviation when the bottle or container is composed of more than one layer of that resin.

(c) The Division of Recycling in the Department of Resources Recycling and Recovery shall maintain a list of abbreviations used on labels pursuant to subdivision (a) and shall provide a copy of that list to a person upon request.

(d) The resin identification code required pursuant to subdivision (a) shall not be placed inside a chasing arrows symbol, as defined in subdivision (f) of Section 17580 of the Business and Professions Code, unless the rigid plastic bottle or rigid plastic container meets the statewide recyclability criteria provided in subdivision (d) of Section 42355.51.

(Amended by Stats. 2021, Ch. 507, Sec 3. (SB 343) Effective January 1, 2022)

18015.5

(a) Alongside proper labels indicating the various resins used to produce such “rigid plastic bottles” and “rigid plastic containers”. Such bottles and containers 16 ounces more or less than 5 gallons, sold in the state must also be labeled with directions of proper recycling disposal. (b) Acceptable recycling disposal direction labels consist of traditional, direct printing labels or legible smart labels; such as Quick Response (QR) codes. (c) All labels must provide clear and concise information regarding proper disposal, and access to local disposal sites within their community.

18016.

On and after January 1, 1992, it is unlawful to manufacture for use in this state any rigid plastic container which is not labeled in accordance with Section 18015 & Section 18015.5. ~~A violation of this section is a crime punishable by a fine of one thousand dollars (\$1,000).~~ A violation of this section will be a crime punishable by a percentage-based penalty, violators will be fined a percentage of their total profits gained off their plastic rigid containers.

- (a) First-time violators will be fined 1% of a corporation's total gained profits from plastic rigid containers
- (b) Fines will increase by 5% increments as violations continue

(Added by Stats. 1988, Ch. 838, Sec. 1.)

18017.

This division does not apply to rigid plastic containers or rigid plastic bottles that are medical devices, medical products that are required to be sterile, prescription medicine, and packaging used for those products.

(Added by Stats. 2020, Ch. 115, Sec. 4. (AB 793) Effective January 1, 2021.)

Section 2.

- (1) Access to local disposal sites; producers must connect with all recycling centers across the California state districts, in order to provide the proper disposal information related to a consumer's direct community.

Increasing with the percentage of 1% and once they continue to violate will increase in increments of 5%.